Consent Details:2405:201:800a:e054:d537:e4f:5e49:9acd || 2022-06-23 16:06:19 || Accepted

Personal Loan Agreement

By checking the 'I Accept' button at the end of the Agreement, the Borrower hereby agrees and acknowledges that the Borrower

(i) is at least 18 years of age, (ii) can understand, read and write in the English language, (iii) has read and understood the terms and conditions contained in the Agreement in relation to the Loan including the First Part and the Second Part ("Terms and Conditions") and (iv) the Borrower agrees to be bound by such Terms and Conditions contained herein below in relation to the Loan.

The Borrower agrees that his/her action of entering the one-time password sent by the Lender and clicking the 'I Accept' button and/or appending his/her electronic signatures on this Agreement, constitutes a valid acceptance by him/her of the Terms and Conditions contained herein below in relation to the Loan and creates a binding and enforceable agreement.

The Terms and Conditions contained herein below in relation to the Loan constitute the complete understanding and agreement between the Borrower and the Lender with respect to the Borrower availing Loan from the Lender.

FIRST PART

Date of execution of the Agreement	: 2022-06-23 16:06:19
Place of electronic authentication	: KOLKATA
Loan Application Reference Number	: 53282377187025
Loan sanctioned by the lender to the Borrower in Rs.	: 632999.00
Loan sanctioned by the lender to the Borrower in words	: Six Lakh Thirty Two Thousand Nine Hundred Ninety Nine Rupees

Details of the Borrower

Name	:	KUNAL DAS
Address of Residence	:	46A 1 LAKE EAST 6TH ROAD FLAT NO 4 SANTOSHPUR SANTOSHPUR SANTOSHPUR SANTOSHPUR Kolkata WEST BENGAL 700075

Address of communication	:	46A 1 LAKE EAST 6TH ROAD FLAT NO 4 SANTOSHPUR SANTOSHPUR SANTOSHPUR SANTOSHPUR Kolkata WEST BENGAL 700075
Type of Borrower	:	Individual

Details of the Co-Borrower

Name	:	NA
Address of Residence	:	NA
Address of communication	:	NA
Type of Borrower	:	NA

SECOND PART

1. Loan Details

Product type	:	Salaried Personal Loan
Loan type	:	Flexi Hybrid Loan
Approved loan amount	:	₹ 628000.00
Approved loan amount (Including insurance/VAS, if applicable)	:	₹ 632999.00
Amount requested for disbursal	:	₹ 100.00
Amount available for further disbursal	:	₹ 617704.00
Annualised rate of interest	:	14.50 %

Method of calculation of interest	:	Reducing Balance
Type of Interest rate	:	Fixed
EMI amount	:	NA
EMI amount-Initial loan tenure (Flexi Hybrid Loan)	:	₹ 7649.00
EMI amount - Subsequent loan tenure (Flexi Hybrid Loan)	:	₹ 14893.00
Gross tenure (Months)	:	84
Initial loan tenure for Flexi Hybrid Loan(Months)	:	24
Subsequent loan tenure for Flexi Hybrid Loan(Months)	:	60
First EMI date	:	2022-08-02
Last EMI date	:	2029-07-02
Mode of Payment (Repayment Mode)	:	ECS
Additional product availed 1	:	CREDIT VIDYA FEES

To view nomenclature of loan details in your preferred language click here

2. Deductions

Processing fees % (Exclusive of taxes)	:	0.70%
Stamp duty charges	:	₹ 10.00

Flexi fee (Inclusive of applicable taxes plus cess)	:	₹ 4999
Touch free fee (Inclusive of applicable taxes plus cess)	:	NA
Flexi assigned limit fee (Inclusive of applicable taxes plus cess)	:	NA
Financial fitness report charges (Inclusive of applicable taxes plus cess)	:	₹ 4999.00
Elite Card Charges (Inclusive of applicable taxes plus cess)	:	NA
EMI Network Card fee (Inclusive of applicable taxes plus cess)	:	NA
Add-on EMI Network card fee (Inclusive of applicable taxes plus cess)	:	NA
Health EMI Network card fee (Inclusive of applicable taxes plus cess)	:	NA
Insta Activation fee - Health EMI Network Card (Inclusive of applicable taxes plus cess)	:	NA
CPP Wallet Assure (Inclusive of applicable taxes plus cess)	:	NA
Increase EMI fee (Inclusive of applicable taxes plus cess)	:	NA
Principal Holiday fee (Inclusive of applicable taxes plus cess)	:	NA
Other charges	:	As may be prescribed by the Lender from time to time
Broken Period Interest/ Pre-EMI Interest	:	Charged from the date of Disbursement to the EMI commencement date

To view nomenclature of charges shown in the deductions section, in your preferred language click here

3. Loan Disbursement Mode

A) Account Transfer(RTGS/NEFT)

(i) Bank name	:	Axis Bank
(ii) Type of Account	:	Savings A/C
(iii) IFSC Code	:	UTIB0000025
(iv) A/c holder name as per bank account	:	KUNAL DAS
(v) Bank Account No	:	911010010326716

B) Account payee cheque

(1) Cheque in favour of	:	NA

4. Existing NACH / Electronic payment & KYC Consent/Instructions

Use of existing ECS/NACH	☑ Yes	☐ No
Use of existing KYC documents	☑ Yes	☐ No

5. Details of NACH / Electronic payment

Bank Name	Axis Bank
Bank Account Number	911010010326716
Amount of Installment	₹ 50000.00

6. Details of Cheque

Bank Name

Bank Account Number

Cheque Number

Amount

7. Fees & Charges Applied by Lender

Full pre-payment (foreclosure) Charges

Foreclosure can be processed post clearance of first EMI

Term Loan： **4% plus applicable taxes and cess** on Principal Outstanding amount as on the date of such full pre-payment

Flexi Term Loan and Flexi Hybrid Loan： **4% plus applicable taxes and cess** on total withdrawable amount* (*Total loan amount that you can withraw under Flexi Loan, from time to time as per the repayment schedule) on the date of levy of such charges

Total Withdrawable Amount：Total Withdrawable Amount shall mean the amount that can be withdrawn under Flexi Term Loan and Flexi Hybrid Loan (“Flexi Loans”) and/or amount available for further disbursal, if any, from time to time as per the repayment schedule

Part Pre-payment Charges

Part pre-payment can be processed post clearance of first EMI for **Term Loans**. However for **Flexi Loans** the part prepayment can be processed post disbursal of loan

Term Loan： **2% plus applicable taxes and cess** on part pre-payment amount paid

Flexi Term Loan：Nil

Flexi Hybrid Loan： Nil

Penal Interest

In case of delay in payment of Monthly Instalment, the Lender shall charge default interest on an amount of Monthly Instalment outstanding as on that date @ **2% of EMI amount per month**

Broken Period Interest/Pre-EMI Interest

Broken Period Interest/Pre-EMI Interest will be charged from the date of Disbursement to the date of EMI commencement. Depending on the product availed, it will either get deducted from your loan amount apart from the charges mentioned or would be included in your first EMI.

Mandate Rejection Service Charge

Rs 450/- (Rupees four hundred fifty only) Inclusive of applicable taxes plus cess

(Charges will be levied if new mandate form is not registered within 30 days from the date of rejection of previous mandate form by Customer's Bank for any reasons whatsoever)

Annual Maintenance Charges

Term Loan : **Nil**

Flexi Term Loan : **0.25% plus applicable taxes and cess**, on the total withdrawable amount irrespective of utilization on date of levy of such charges

Flexi Hybrid Loan : **0.25% plus applicable taxes and cess**, on the total withdrawable amount irrespective of utilization on date of levy of such charges

Annual Fee

EMI Network Card / Health EMI Network Card : Annual fee **₹ 117 (Inclusive of applicable taxes plus cess)**

Annual fee of Rs.117, for each card availed (Inclusive of applicable taxes plus cess) will only be charged to the respective Card holders who have not availed any loan using such Card in the preceding year. The duration of the preceding year is calculated 12 months from last year's validity month, which is printed on the face of your respective Card. For example, If the Card is issued in the month of February 2019 (referred to as 'Member Since', on the Card) the date for payment of the annual fee will be March, 2020.

Statement Of Account/ Repayment Schedule/Foreclosure Letter/ No Dues Certificate/Interest Certificate/List of Documents

Download your e-statements/letters/certificates at no extra cost by logging into Customer Portal – Experia (https://customer-login.bajajfinserv.in/_LAYOUTS/15/B2C_2013_LoginPage/B2C_CustomLogin.aspx?source=website&utm_source=bajajfinserv&utm_medium=referral&utm_campaign=home_page_signin&_ga=2.186221993.1605791066.1555153569-1709240303.1555153569)

You can get a physical copy of your statements/letters/certificates/List of Documents from any of our branches at a charge of Rs. **50/- (Inclusive of applicable taxes plus cess)** per statement/letter/certificate

Bounce Charges

Rs. 1,200/- (Rupees Twelve Hundred Only) inclusive of applicable taxes plus Cess levies in case of default by reason of the repayment instrument(s) being dishonored

This Personal Loan Agreement ('Agreement') is made at the place and on the date as set out in First Part.

BETWEEN

BAJAJ FINANCE LIMITED, a company incorporated under the provisions of the Companies Act, 1956, and existing under the provisions of Companies Act, 2013, having its registered office at Mumbai Pune Road, Akurdi, Pune – 411035, Maharashtra and corporate office at S No. # 208/1-B, 4th Floor, Viman Nagar, Pune – 411014, Maharashtra, acting in these presents through its branch office located in the city/town as mentioned in First Part and with GSTIN [27AABCB1518L1ZS] ('BFL' or the 'Lender', which expression shall, unless repugnant to the context, include its successors and assigns) of the First Part;

AND

The Borrower, material particulars whereof are described and set out in First Part,

OTHER PART

The Lender and Borrower are hereinafter collectively referred to as 'Parties' and individually as 'Party'.

WHEREAS:

A. The Lender is a non-banking finance company, inter alia, engaged in the business of providing loans/credit facilities to various customers.

B. The Borrower has requested the Lender to grant the Loan to the Borrower and the Lender, relying upon the representations made and information provided by the Borrower, has agreed to grant the Loan to the Borrower, on the terms and conditions mutually agreed and contained in this Agreement and in other Loan Documents, upto the maximum principal amount as mentioned in First Part, and for the purpose as mentioned in the Application Form, in its sole and absolute discretion.

NOW, THERE FORE, in consideration of the foregoing and other good and valid consideration, the receipt and adequacy of which is expressly acknowledged, the Parties hereby agree as follows:

1. Defination and Interpretation

1.1 Definitions

For the purposes of this Agreement, in addition to the terms defined in the description of the Parties: (a) all capitalised words and expressions defined by inclusion in quotation and/or parenthesis anywhere in this Agreement, have the same meanings as ascribed to such words and expressions; (b) words and expressions used herein but not defined shall have the same meaning as assigned to them in General Clauses Act, 1897; and (c) following words and expressions shall have the meaning as set-out in this Clause 1:

'Additional Loan'means the loan as may be applied by the Borrower to the Lender, over and above the amount of the Loan sanctioned by the Lender, up to the maximum of the Flexi Assigned Limit, as may be approved by the Lender;

'Additional Loan Addendum'means an addendum to this Agreement, substantially in the format prescribed by the Lender, in relation to the Additional Loan;

'Affiliate'means the subsidiary company and/or holding company and/or associate company of BFL where the subsidiary company, holding company and associate company shall have the meaning ascribed to such term in the Companies Act, 2013, as amended from time to time;

'Agreement' means and includes this Agreement, together with all the parts, exhibits, addendums, attachments and appendices annexed hereto and all amendments/supplements hereto and restatements hereof;

'Applicable Law'means the 'Indian Law' as per the General Clauses Act, 1897;

'Application Form'means the Loan application, in the form and manner prescribed and acceptable to the Lender together with such documents and information as may be required by the Lender, filled in and submitted by the Borrower to the Lender in relation to the Loan;

'Bounce Charges'means an amount payable by the Borrower to the Lender as a penalty where cheque issued by the Borrower is not honoured by the bank, or ECS or any other Repayment Mode is returned or not honoured, @ as mentioned in Second Part ;

'Broken Period Interest/Pre-EMI Interest'shall mean the amount of interest on Loan for the number of day(s) which is (are) over and above the period of 30 (thirty) days from the date of Disbursement of the Loan more specifically as detailed in Clause 2. 30 of the Agreement;

'Business Day'means a day on which the Lender and banks are open for business in Delhi, Pune and Mumbai and location of the drawee bank on which the Repayment Mode is drawn;

'Cheque'shall mean cheque(s) drawn in favour of the Lender for an amount equivalent to the Loan, the Flexi Drawdown (if any) and the Additional Loan (if any) availed, from time to time, details of which are provided in Second Part and/or furnished to Lender by a separate letter executed by the Borrower;

'Disbursement or Disbursal or Disbursement of Loan'are the terms which are synonymously referred in this agreement in order to explicitly refer to the earlier occurrence of either of the following event(s):

(i) Date of debit of loan amount from Lender’s account for:

  (a) issuance of Account payee cheque/Pay order/ Demand draft in favour of Borrower; or

  (b) effecting online transfer of loan amount to the bank account of Borrower; or

(ii) Date of issuance of Account payee cheque/Pay order/ Demand draft towards the disbursal of loan amount, whether or not received/encashed/acknowledged by the Borrower; or

(iii) Date of effecting online transfer of loan amount to the bank account of Borrower, whether or not withdrawn/ utilised by Borrower.

'Due Date', means, in respect of:

(a) the Monthly Instalment and/or Outstanding Dues, the respective Repayment Dates;

(b) the interest on the Outstanding Dues, the Interest Payment Date;

(c) costs, charges and expenses incurred or paid by the Lender under the Loan Documents, within seven (7) Business Days from the date on which the Borrower has received notice from the Lender providing details of such costs, charges and expenses; and

(d) any other amount payable under the Loan Documents, the date on which such amount falls due in terms of the Loan Documents, or on demand if the due date is not specified in such Loan Document;

'Electronic Clearing System or ECS' or NACH,means the debit clearing schemes, notified by RBI from time to time, being mode(s) of electronic funds transfer from one bank account to another bank account using the services of a clearing house or any other platform or mechanism duly authorised in this regard including without limitation the NACH Mandate.;

'Flexi Assigned Limit' means the amount of the loan which has been approved by the Lender to the Borrower over and above the amount of the Loan sanctioned, up to the maximum outer limit.

'Flexi Drawdown' means the loan as may be granted by the Lender to the Borrower for an amount less than or equivalent to the amount prepaid and/or repaid by the Borrower under Flexi Term Loan, the Flexi Interest-only Loan or Flexi Hybrid Loan, as the case may be.;

'Flexi Hybrid Loan'refers to the variant of Loan provided by the Lender to the Borrower under which, during the Initial Tenure, the Monthly Installment shall comprise only of the interest component and during the Subsequent Tenure, the Monthly Installment shall comprise of principal amount and the interest payable on the Loan, basis the variant of Loan opted by the Borrower and as specified under Second Part;

'Flexi Term Loan'means the variant of the Loan provided by the Lender to the Borrower for an amount mentioned in **Second Part;**

'Flexi Interest-only Loan'means the variant of the Loan with respect to which Monthly Instalments shall comprise only of the interest component and the Loan amount shall be repayable on or before the Repayment Date subject to the terms of this Agreement.;

'IMPS' means the instant real-time inter-bank electronic funds transfer system.

'Initial Tenure' means the initial term period of the Flexi Hybrid Loan, out of the overall Loan Tenure commencing from the date of Disbursal of the Loan by the Lender.

'Interest Payment Date'means the due date for the payment of the Monthly Instalment of the interest on the Loan at the Interest Rate and/or such other date as may be specified by the Lender, commencing from the date of the Disbursement of the Loan and includes the due date for the payment of interest on the principal amount payable by the Borrower before the commencement of the Monthly Instalment;

'Interest Rate' means the rate of interest in relation to the Loan as mentioned in Second Part.

'Loan' means:

The Personal Loan provided by the Lender to the Borrower up to a maximum principal amount as mentioned inFirst Part

and such loan may be either in form of a term loan or one of the variants or a combination of such variants from the following options as approved by BFL:

(a) Flexi Term Loan; and

(b) Flexi Interest-only Loan; and

(c) Flexi Hybrid Loan.

'Loan Documents' means collectively:

(a) Additional Loan Addendum, if any;

(b) Application Form;

(c) this Agreement;

(d) any other document executed from time to time pursuant to any of the foregoing to which the Borrower or the Lender is a party; and

(e) any other agreement or document which the Lender designates as a Loan Document;

'Loan Tenure' shall mean the tenure of the Loan as specified in Second Part;

'Monthly Instalments' or 'Equated Monthly Instalments (EMIs)' means the amount payable every month by the Borrower to the Lender comprising of the interest, or as the case may be, principal amount of the Loan and/or interest;

'NEFT' means the National Electronic Fund Transfer in terms of the regulations and directions issued by RBI or any regulatory or statutory body;

'Outstanding Dues' means, at any time, all the amounts outstanding and payable or obligations to be performed by the Borrower to the Lender, pursuant to the terms of this Agreement and/or any other Loan Documents, including but not limited to the following:

(a) the principal amount(s) of the Loan;

(b) the interest on the Loan;

(c) all other obligations and liabilities of the Borrower, indemnities, liquidated damages, costs, charges, expenses and other fees and interest incurred under, arising out of or in connection with this Agreement and/or any other Loan Documents (either severally or jointly); and

(d) any and all expenses or sum incurred by the Lender for the enforcement of and collection of any amounts due under this Agreement and/or any other Loan Documents, including expenses of enforcement and realisation;

'Penal Interest' means an additional interest payable by the Borrower to the Lender as a penalty in case of delay in payment of the Monthly Instalments and/or Outstanding Dues, at the rate as mentioned in Second Part;

'Pre-payment Charges' means an amount payable by the Borrower to the Lender as a penalty for repayment of the Outstanding Dues, either in part or whole, before its scheduled Repayment Date, details of which are provided in Second Part;

'RBI' means the Reserve Bank of India

'Repayment Date':

(a) in relation to the Monthly Instalments, means the date, on or before which each Monthly Instalment is to be repaid by the Borrower, as more specifically mentioned in Second Part commencing from the date of the Disbursement of Loan and includes the due date for the payment of interest on the principal amount payable by the Borrower before the commencement of the Monthly Installment; and

(b) in relation to the Outstanding Dues means the date, on or before which, the entire Outstanding Dues is to be repaid by the Borrower, as more specifically mentioned in Second Part;

'Repayment Modes' means the payment of the Monthly Instalments and the Outstanding Dues, as the case may be, on or before the Due Dates(s), by any of the following modes, which options are set out in Second Part:

(a) ECS/NACH;

(b) NEFT;

(c) Cheques;

(d) RTGS;

(e) Standing instructions at the bank; and

(f) Any other instrument suitable from time to time.

'RTGS' shall mean real time gross settlement in terms of the regulations and directions issued by RBI or any regulatory or statutory body;

'Subsequent Tenure' means the subsequent term period of the Flexi Hybrid Loan, out of the overall Loan Tenure, commencing from the date of expiry of the Initial Tenure

'Website' means the website of the Lender, presently being www.bajajfinserv.in/finance.

1.2 Interpretation

(i) Unless the context otherwise requires, words denoting the singular shall include the plural and vice versa;

(ii) the table of contents, headings and the use of bold typeface, are inserted for ease of reference and shall be ignored in the construction and interpretation of the Agreement;

(iii) a reference to a Clause or part is, unless indicated to the contrary, a reference to a Clause or part to this Agreement;

(iv) references to this Agreement shall be construed as references also to any separate or independent stipulation or agreement contained in it;

(v) references to the word 'includes' or 'including' shall be construed without limitation; and

(vi) words importing a particular gender include all genders.

2. Loan

2.1 The Borrower agrees to borrow from the Lender and the Lender agrees to make available and extend to the Borrower, at its sole and absolute discretion, the Loan, for an amount as mentioned in the Application Form and First Part , for the purpose as mentioned in the Application Form, on the terms and conditions contained in this Agreement and in other Loan Documents.

2.2 The Disbursement of the Loan may be made directly to the Borrower in one lump sum or in such Instalments as per the details provided under the Application Form and First Part or as may be requested by the Borrower, subject to the terms and conditions contained herein. The Borrower understands that where BFL disburses the Loan to the Borrower using the IMPS/RTGS/IMPS facility and the Loan amount exceeds Rs 2 (two) lacs, the Loan amount will be received by the Borrower in multiples of Rs. 2 (two) lacs. The Borrower agrees that on account of partial disbursement as per request of Borrower or pre-payment of Loan amount or on availment of Flexi Drawdown, repayment terms including but not limited to EMI’s may be revised at the sole discretion of the Lender and the same shall be informed to the Borrower through Electronic Media.

2.3 The Disbursement of the Loan shall be made in accordance with the RTGS/NEFT/IMPS business hours as notified by the RBI from time to time. The Lender shall not in any event or circumstance be liable or be construed as being liable in case there is any delay(s) in Disbursement of the Loan on account of any technical or system errors, etc.

2.4 The Borrower may also avail:

(a) the Additional Loan by executing the Additional Loan Addendum; and

(b) the Flexi Drawdown, in the form and manner prescribed by the Lender. The Flexi Drawdown and the Additional Loan shall be subject to the terms and conditions of the Loan Documents, such other terms and conditions as may be prescribed by the Lender in this regard and the Additional Loan Addendum, as the case may be. The Borrower applying for the Additional Loan is required to execute the Additional Loan Addendum.

2.5 The Borrower shall pay interest on the Loan on the Interest Payment Date at the applicable Interest Rate. Subject to the commencement of Interest Payment Date with respect to the Loan, all interest accruing on the Outstanding Dues under the Loan shall accrue from day to day and shall be calculated on a reducing balance by taking a base of 365 (three hundred and sixty-five) days per year. Further the Borrower shall pay the Flexi Fee to the Lender for availing Flexi Term Loan, Flexi Hybrid Loan and Flexi Interest-only Loan, as detailed under Second Part of this agreement.

2.6 The Lender shall be entitled to revise the Interest Rate at any time and from time to time as per its policy, if any, during the Loan Tenure, at its sole discretion or due to change in the regulatory requirements including any guidelines/ regulations issued by RBI and such revised Interest Rate shall be deemed to form part of the Loan and the Borrower shall also be liable to pay such revised amount of interest on the Loan in such manner and within such period as may be determined by the Lender in its sole discretion. Any revision in the Interest Rate shall be effective from a prospective date and the Lender shall notify the Borrower in advance to this effect and the same would be binding upon the Borrower. The Lender shall also notify any change in the Interest Rate by updating the same on its Website. Further the Borrower understands and acknowledges that the Interest Rate specified by BFL is fixed rate of interest, unless otherwise expressly mentioned in Second Part of this Agreement.

2.7 (A) Interest rate applicable for Personal Loans in Bajaj Finance Limited shall vary basis our internal credit and risk policy and as per an algorithmic multivariate score card which includes following variables (inclusive and not exhaustive):

- Interest rate risk (fixed vs floating loan)
- Credit and default risk in the related business segment
- Historical performance of similar homogeneous clients
- Profile of the borrower
- Industry segment
- Repayment track record of the borrower
- Secured Vs unsecured loan
- Ticket size of loan
- Bureau Score
- Tenure of Loan
- Location delinquency and collection performance
- Customer Indebtedness (other existing loans)

The aforesaid variables may be revised from time to time as per the Lender’s past performance in a given loan portfolio.

(B) The Borrower agrees to repay the Monthly Instalments and the Outstanding Dues to the Lender on or before the Repayment Date using the Repayment Modes as set out in **Second Part** , or in such manner and at such place, as may be agreed between the Borrower and Lender, from time to time during the course of this Agreement. The instructions for the ECS/NACH as provided by the Borrower and will cover the maximum principal amount under the Loan and other Outstanding Dues thereon. The Lender may, at the request of the Borrower in writing, agree to change the Repayment Mode. The Borrower understands and agrees that an annual maintenance charge shall have to be paid by the Borrower on an annual basis at the rate as mentioned in Second Part

2.8 In the event the Borrower defaults in payment of the Outstanding Dues or the credit rating of the Borrower falls below the required criteria fixed by the Lender as per its internal policy or the Borrower resigns/is terminated from the employment or for any other reason deemed fit by the Lender, the Lender shall be entitled to terminate the Flexi Assigned Limit provided to the Borrower or disallow further drawdowns under the Loan and in case of Flexi Interest- only Loan, Flexi Hybrid Loan and Flexi Term Loan, the Lender may revise the Monthly Instalment such that the Borrower shall repay principal and/or interest amount to the Lender and the Borrower agrees that it shall be liable to pay such revised Monthly Instalment as per the repayment schedule revised by the Lender at its sole discretion. Such revision in the Monthly Instalment and repayment schedule shall be effective from a prospective date and the Lender shall notify the Borrower in advance to this effect and the same would be binding upon the Borrower. The Lender may, at any time, in its sole discretion, recall / foreclose the Loan without prior notice to the Borrower and revise the repayment schedule in its sole and absolute discretion. The Borrower agrees and undertakes to forthwith issue fresh cheque/ECS/NACH instruction to the Lender in the event of any revision in the repayment schedule. The cheques shall be presented for the encashment in case the Monthly Instalment through ECS/NACH is not

processed due to any technical issue or otherwise. However, the Lender has a right to take action against the Borrower in case of default by the Borrower in payment of Monthly Instalments through ECS/NACH. The Borrower confirms having perused, understood the Lender's method of calculating the interest on the Loan on reducing balance rate and also the calculation of the Monthly Instalments.

2.9 Notwithstanding anything contained in this Agreement, the Lender may at any time in its sole discretion and without assigning any reason whatsoever, call upon the Borrower to pay the Outstanding Dues and thereupon the Borrower shall within 15 (fifteen) days of being so called upon pay the whole of the Outstanding Dues to the Lender without any delay or demur. The liability of the Borrower to the Lender shall not be discharged until and unless the Borrower has paid or discharged the Outstanding Dues owed to the Lender under this Agreement.

2.10 The Monthly Instalments shall automatically change by reason of change in any rates, taxes, charges, imposts, levies and monies whatsoever that are or may be levied on the Monthly Instalments or the transaction contemplated hereunder or may become payable by the Borrower by virtue of this Agreement. Such change in the Monthly Instalments due to change in the rates, taxes, charges, imposts, levies and monies as stated above shall be effected only prospectively and the same shall automatically form part of the Loan.

2.11 At the written request of the Borrower, the Lender may foreclose the Loan by accepting the pre-payment of the Outstanding Dues ('Pre-Payment'). The Pre-Payment of the Outstanding Dues may be either full Pre-Payment or part Pre-Payment as described below.

(a) Full Pre-Payment (Foreclosure Charge)

At the request of the Borrower, the Lender may accept the full Pre-Payment of the Outstanding Dues and foreclose the Loan, subject to payment of minimum Monthly Instalment as mentioned in Second part and subject to payment of the applicable Full Pre-Payment Charges.

(b) Part Pre-Payment

At the request of the Borrower, the Lender may accept part Pre-Payment of the Loan, subject to payment of minimum Monthly Instalment as mentioned in Second part and subject to payment of the applicable Part Pre-Payment Charges.Based on the part Pre-Payment made by the Borrower, as stated herein, either the Loan Tenor shall be reduced to the extent of the part Pre-Payment made or the EMI amount shall be reduced by maintaining the existing Loan Tenor, with the mutual written consent of the Parties.

2.12 The Borrower acknowledges that any Pre-Payment shall be subject to the payment of the Pre-Payment Charges. The Lender shall be entitled to recover from the Borrower the Pre-Payment Charges on the amount of the Loan, repaid bythe Borrower ahead of the timeline, as mentioned in Second Part.

2.13 The Borrower undertakes to deliver to the Lender, the cheque. The Borrower confirms that cheque are issued towards repayment of the Monthly Instalments and the Outstanding Dues, and the delivery of cheque shall be deemed to be an unconditional and irrevocable authority given by the Borrower to the Lender to present cheque towards repayment of the Monthly Instalments and the Outstanding Dues. The Borrower confirms that cheque shall be honoured on its first presentation and the Borrower shall not issue any contrary instructions to the relevant bank. The Borrower confirms that cheque is not a security. The Lender shall be entitled to recover from the Borrower the Outstation Collection Charges.

2.14 Any dispute or difference of any nature whatsoever shall not entitle the Borrower to withhold or delay payment of any Monthly Instalments or other sum and the Lender shall be entitled to present the cheque/ECS/NACH to the bank of the Borrower on the Due Dates.

2.15 The Borrower understands, confirms and agrees that the Lender shall, at its sole discretion, at multiple occasions and on different dates, present in the Borrower's bank account, the ECS/ NACH mandate or any other electronic or other clearing mandate (given by the Borrower in favour of the Lender covering all the Outstanding Dues) which returns unpaid, for recovering the Outstanding Dues from the Borrower and until realization of all Outstanding Dues. The Borrower agrees and undertakes that the Borrower shall not dispute, complain or object to such presentations by the Lender. Further, the Borrower understands and agrees that return of Cheque or ECS/ NACH mandate or any other electronic or other clearing mandate, will result in Bounce Charges being added to the Outstanding Dues.

2.16 If the Borrower avails the Loan in the form of Flexi Term Loan, then:

(a) the roll over amount / Outstanding Dues shall be reduced on a monthly basis such that the Outstanding Dues shall be reduced to zero at the end of Loan Tenure;

(b) The reduction of the roll over amount / Outstanding Dues as provided in Clause 2.16 (a) above, shall be either through (a)the equated principle Flexi Term Loan method under which the rollover amount/Outstanding Due will be reduced/ deducted on an equated basis during the Loan Tenure ('Equated Principle Repayment Method') or (b) the written down value method under which the rollover

amount/Outstanding Due will be reduced/ deducted on reducing balance basis during the Loan Tenure ('Written Down Value Method'), as prescribed by the Lender.

(c) the Monthly Installments may comprise of equal installments or variable installments or interest only installments;

(d) the Lender may, at any time during the Loan Tenure, in its sole and absolute discretion and/or in accordance with the Lender's internal policy, change the Loan variant from Flexi Term Loan to term loan or to such other variant of Loan as contemplated under this Agreement and may accordingly revise the Monthly Installment and repayment schedule of the Loan. The Borrower agrees that the Borrower shall be bound to pay such revised Monthly Installment as per the repayment schedule revised by the Lender. Such revision in the Monthly Installment and repayment schedule shall be effective from a prospective date and the Lender shall notify the Borrower in advance to this effect

2.17 If the Borrower avails the Loan in the form of Flexi Interest-only Loan, then:

(i) the Monthly Instalments shall comprise only of interest for the Loan and the Loan amount shall be repayable on or before the Repayment Date;

(ii) the Loan sanctioned to the Borrower, for an amount as mentioned in First Part, shall be available for a period of one (1) year from the date of this Agreement and the same will be Disbursed by the Lender in one lump sum or in such Instalments as per the details provided under the Application Form and First Part or as may be requested by the Borrower.

(iii) the Loan provided to the Borrower may, at the sole and absolute discretion of the Lender, be renewed on an annual basis, subject to the payment of annual maintenance charge by the Borrower, on an annual basis, in respect of such renewal as per Second Part. The Borrower shall be required to provide to the Lender financial statements and/or such other documents as may be required by the Lender for renewal of the Loan as mentioned above.

(iv) upon review of the Loan as mentioned at Clause 2.17 (iii) above or if the Borrower defaults in payment of the Outstanding Dues or for any other reason deemed fit by the Lender, the Lender may at its sole and absolute, during the Loan Tenure, change the Loan variant from Flexi Interest-only Loan to term loan and accordingly revise the Monthly Installment which shall then comprise of the principle amount of the Loan and the interest thereon. The Borrower agrees that the Borrower shall be bound to pay such revised Monthly Installment as per the repayment schedule revised by the Lender. Such revision in the Monthly Installment and repayment schedule shall be effective from a prospective date and the Lender shall notify the Borrower in advance to this effect.

(v) the Borrower shall have an option to avail Additional Loan upon renewal as mentioned in Clause 2.17 (iii) above.

2.18 If the Borrower avails the Loan in the form of Flexi Hybrid Loan, the following shall apply:

(i) the Borrower shall have the benefit of paying Monthly Installments comprising only of the interest component, during the Initial Tenure and during the Subsequent Tenure, the Monthly Installments shall comprise of the principal amount of the Loan and interest.

(ii) the Borrower shall, during the Subsequent Tenure, repay Outstanding Dues in a manner that Outstanding Dues is reduced to zero at the end of Loan Tenure, through Equated Principle Repayment Method or Written Down Value Method, as prescribed by the Lender;

(iii) the Lender may, at any time during the Loan Tenure, in its sole and absolute discretion and/or in accordance with the Lender's internal policy, change the Loan variant from Flexi Hybrid Loan to term loan or to such other variant of Loan as contemplated under this Agreement and may accordingly revise the Monthly Installment and repayment schedule of the Loan. The Borrower agrees that the Borrower shall be bound to pay such revised Monthly Installment as per the repayment schedule revised by the Lender. Such revision in the Monthly Installment and repayment schedule shall be effective from a prospective date and the Lender shall notify the Borrower in advance to this effect.

2.19 Flexi Structure

(a) The Lender may, at its sole and absolute discretion, grant a Flexi Drawdown to the Borrower under the Flexi Term Loan, the Flexi Interest-only Loan or Flexi Hybrid Loan on the terms and conditions contained in this Agreement and the Loan Documents;

(b) The Borrower shall be eligible to make drawdown under the Flexi Term Loan, the Flexi Interest-only Loan or the Flexi Hybrid Loan for an amount less than or equivalent to the amount of Loan repaid or prepaid by the Borrower in terms of Clause 2.11 of this Agreement.

(c) For availing the Flexi Drawdown, the Borrower agrees to the following conditions:

(i) the Borrower shall request for a Flexi Drawdown by sending a Communication through Electronic Media, as per the process prescribed by Lender;

(ii) to pay an additional charge at the rate prescribed by the Lender from time to time; and

(iii) that the rate of interest and other repayment terms may be revised at the sole discretion of the Lender and the same shall be as informed to the Borrower through Electronic Media.

2.20 The Borrower hereby irrevocably authorizes the Lender to destroy cheque(s) (if any) in the possession of the Lender upon repayment of the Loan together with all costs, charges and expenses, by the Borrower to the satisfaction of the Lender.

2.21 Notwithstanding anything contained herein, the Lender shall be entitled to adjust any advance Monthly Instalment and/or security deposit/initial payment made by the Borrower towards any Outstanding Dues in such manner and at such time as the Lender may determine in its sole discretion.

2.22 All sums payable by the Borrower to the Lender shall be paid without any deductions whatsoever at such place as the Lender may specify and shall be so paid so as to enable the Lender to realise the sum on or before the Due Date. Credits/discharge for payments will be given only on realisation of amounts due.

2.23 In the event of the Borrower committing a default in the payment of any sum payable hereunder and/or in relation to the Loan or the Borrower committing any breach or default of any other condition of this Agreement or under any other instrument in respect of the Loan, the Borrower shall, in respect of the Outstanding Dues and in respect of the Monthly Instalments or other amount in default, pay the Penal Interest, from the date of default till the date of realisation by the Lender. The payment of the Penal Interest shall not absolve the Borrower of the other obligations in respect of such breach or default or affect the rights of the Lender in respect of the breach or default.

2.24 Any sums received by the Lender from the Borrower shall be appropriated in the following manner:

(a) firstly, against interest payment;

(b) secondly against overdue Monthly Instalments;

(c) thirdly against Bounce Charges;

(d) fourthly against any other penal charges or any other claim of the Lender on the Borrower under the Loan Documents.;

(e) lastly against principal amount of the Loan

2.25 In case Borrower has chosen an insurance cover details of which are provided under Second Part , the Lender shall have the right to appropriate insurance claim paid thereunder towards the Outstanding Dues. If after such appropriation, there be any surplus leftover, it shall be paid to the Borrower. If, however there is any deficit even after such appropriation, then the Borrower shall be liable to pay to the Lender, the entire deficit forthwith

2.26 In case, Borrower has chosen an insurance cover and is a member of ‘Group Insurance Policy’ taken by the Lender, the Lender shall have the right to appropriate insurance claim paid thereunder towards the Outstanding Dues. If after such appropriation, there be any surplus leftover, it shall be paid to the Borrower. If there is any deficit, then the Borrower shall be liable to pay entire deficit forthwith.

2.27 At the request of the Borrower, the Lender may at its discretion also finance the insurance premium of an insurance policy (details of which are provided under Second Part) insuring the Borrower against various risks including without limitation the risks of personal accident, accidental hospitalization, Outstanding Dues to the Lender and/or critical illness provided that such insurance policy has been taken out by the Lender on behalf of the Borrower from an insurance company approved by the Lender with a specific instruction and authority by the Borrower to such insurance company that in case of any loss, the loss will be paid to the Lender by such insurance company. Such insurance premium paid by the Lender on behalf of the Borrower shall be added to the principal amount to the Loan granted herein and shall from part of the Loan. The Borrower shall pay to the Lender the amounts towards insurance premium as mentioned before which may be added to the installments payable under the Loan. The insurance premium being a part of Loan may be Disbursed by the Lender directly to such an insurance company approved by the Borrower and such Disbursement shall be deemed to be a Disbursement to the Borrower. Wherever the Borrower agrees for the insurance coverage, all the applicable expenses, charges, fees, service tax and other taxes etc. shall be incurred and paid by the Borrower. In the event the said charges are paid by the Lender on Borrower’s behalf, the Borrower shall reimburse the same to the Lender within 24 (twenty-four) hours of receiving Lender’s demand in this regard.

2.28 Any promotional scheme and/or offer, as may be initiated by the Lender for its customers, is independent of this Agreement and the Loan and such promotional schemes and/or offer do not constitute any kind of solicitation by the Lender. Such promotional schemes and/ or offers shall be governed by the terms and conditions issued in relation thereto, which shall be carefully read by the Borrower in case the Borrower decides to participate in such schemes/offers. Further, the Borrower agrees and confirms that the Lender shall have the right to withdraw any of the promotional schemes, at any time, at its sole discretion

2.29 The Borrower hereby agrees and confirms that the Lender shall have the right to cross sell its other products and services, the products and services of its Affiliates (like insurance) and products and service of any third party, to the Borrower along with the Loan.

2.30 The Borrower shall be liable to pay Broken Period Interest/Pre-EMI Interest on the Loan, as detailed in Second Part. The Borrower understands and agrees that in the event the first due date for payment of EMI is after a period of 30 (thirty) days from the date of Disbursement of the Loan amount, the Borrower authorises the Lender to deduct upfront interest, for such additional number of days beyond the aforementioned period of 30 (thirty) days, at the time of Disbursement from the Loan amount.

2.31 The Borrower has understood the following illustration of the aforementioned Broken Period Interest/Pre-EMI Interest. The figures here are indicative as the Broken Period Interest/Pre-EMI Interest amount shall change basis changes in the Loan amount, interest and the other factors stated herein below:

Loan Amount	INR 1,00,000/-	
Interest Rate	16% p.a	
Scenario	Scenario 1	Scenario 2
Disbursal Date	19-Mar-15	19-Mar-15
First Due Date	02-May-15	05-May-15
Gap between First Due Date and Loan Disbursal Date (A)	44	47
Days Interest Charged in First EMI (B)	30	30
Broken Period (in days) (A-B)	14	17
Broken Period Interest/Pre-EMI Interest (in INR)	614	745

2.32 The Borrower hereby agrees and acknowledges that Lender may, at its sole and absolute discretion and at Borrowers request, **subject to payment of the fee/charges as provided for in Second Part above**, provide the following options:

(i) Principal Holiday:

The Borrower may request for *reduction of EMI's* and accordingly agree that the revised repayment schedule will be binding on the Borrower. The said facility will be available at sole and absolute discretion of the Lender and is subject to Lender's internal policies/criteria's *including but not limited to*:

a. Principal Holiday option will be available twice in the Loan Tenure and cannot be availed more than once in a year.
b. Loan Tenure can be extended by 3 *(three)* months on availing the said Principal Holiday option.
c. Principal Holiday option cannot be availed in last 6 *(six)* months of the Loan Tenure
d. Principal Holiday option can be availed only when 25 % *(twenty-five percent)* of the Outstanding Due has been repaid by the Borrower.
e. Principal Holiday option cannot be availed, where Cheque, NACH or any other Repayment Mode is returned or dishonored in last 12 *(twelve)* months of raising such request.

(ii) Increase EMI:

The Borrower may request for *increase of EMI's* and accordingly agree that the revised repayment schedule will be binding on the Borrower. The said facility will be available at sole and absolute discretion of the Lender and is subject to Lender's internal policies/criteria's *including but not limited to*:

a. Increase EMI option can be availed by the Borrower, anytime during the Loan Tenure.
b. Increase EMI option cannot be availed, where Cheque, NACH or any other Repayment Mode is returned or dishonored in last 12 *(twelve)* months of raising such request.

2.33 If the EMI/Monthly Instalment due date in respect of the loan falls on a day which is not a Business Day, EMI/Monthly Instalment shall be presented on immediate next Business Day for such EMI/Monthly Instalment payment.

2.34 Borrower hereby agrees and acknowledges that, after disbursal of loan amount, any request for cancellation will not be entertained. However, Borrower will have the option to foreclose the loan subject to: (i) adherence of terms of this Agreement; (ii) payment of interest till date of foreclosure of loan (iii) payment of applicable foreclosure charges as stated in the Schedule. Further, the fees and charges paid/collected/deducted in relation to such loan is NOT refundable.

3. Default

The Borrower shall be deemed to have committed an act of default if the Borrower does not comply with his/her obligations as mentioned in this Agreement and also on the happening of any one or more of the following events, (each an 'Event of Default' and collectively 'Events of Default'):

(a) The Borrower fails to pay any Monthly Instalments or the Outstanding Dues under this Agreement on or before the Due Date or commits breach of any of the terms, covenants or conditions contained in this Agreement;

(b) it is found that the Borrower commits a default of any of the terms and conditions in respect of any other loan or facility provided by the Lender and/or any Affiliates of the Lender;

(c) there exists any circumstances which in the opinion of the Lender prejudicially affects or may affect the Lender's interest or the Borrower's ability to repay the Loan;

(d) demise of the Borrower or if the Borrower compounds with his/her creditors or permits any attachment or sequestrations or other processes against any of his/her assets or properties;

(e) if the Borrower commits an act of insolvency or if the Borrower is declared insolvent or bankrupt or if a receiver or official assignee is appointed in respect of any property or estate of the Borrower or if the Borrower asks for any application for declaring himself an insolvent or if an application for declaring the Borrower as insolvent is made or any order is passed by any competent count or authority for taking the Borrower into insolvency; and

(f) if any proceedings are pending or threatened against the Borrower by any government agency or authority for any misconduct or breach/violation of any law or regulations or code of conduct, etc.

Upon the occurrence of the Event of Default and at any time thereafter, if any such event shall be continuing, the Lender may:

(a) accelerate the repayment of the Loan including the Outstanding Dues;

(b) place the Loan on demand or declare all the Outstanding Dues payable by the Borrower in respect of the Loan to be due and payable immediately;

(c) recover the charges for dishonour of the Repayment Modes, Penal Interest and any other penal charges from the Borrower as mentioned in Second Part;

(d) terminate this Agreement;

(e) exercise such other rights and remedies as may be available to the Lender under law during the pendency of the Loan including without limitation under Section 138 of the Negotiable Instruments Act, 1881 and under Section 25 (1) of Payment of Settlement System Act, 2007; and/or

(f) stipulate such other condition(s) or take such other action(s) as the Lender deems fit.

4. Covenant of Borrower

The Borrower hereby covenants that during the period of this Agreement:

(i) The Borrower shall observe and perform all its obligations and covenants under this Agreement.

(ii) The Borrower shall ensure timely payment of the Monthly Instalments to the Lender and ensure that the Repayment Modes issued towards payment of the Monthly Instalments are honoured on presentation. It is the duty of the Borrower to ensure that his/her bank account has been debited towards the Monthly Instalments and in case of his/her account not been so debited, the Borrower shall be obliged to inform the Lender in this regard within 3 (three) Business Days from the Due Date of such Monthly Installment.

(iii) The Borrower shall promptly notify the Lender of any change in the Borrower's address, phone number, employer name, email address, as mentioned in First Part.

(iv) The Borrower confirms that he/she shall ensure availability of funds in the bank account on which such cheque have been drawn and that the Borrower will not at any time close his/her bank account until the full and final payment of the Outstanding Dues has been made to the Lender by the Borrower.

(v) The Borrower shall not change his/her name or change his/her bank account on which cheque have been drawn without prior written consent of the Lender.

(vi) The Borrower shall pay/reimburse the Lender against all expenses for any purpose relating to this Agreement including any taxes pertaining to this Agreement, or the Loan and enforcing the terms thereof.

(vii) The Borrower shall pay and bear all taxes, rates, duties, charges and other imposts and obligations, existing as well as in future, in respect of the product and the transaction hereunder.

(viii) The Borrower shall do all such things and execute all such writings as the Lender may require from time to time for duly or more perfectly securing the repayment of the Loan.

(ix) The Borrower shall use the Loan only for Borrower's personal requirement and shall not use the same for any other purpose including investing in the capital market or for any speculative purposes, unlawful purposes and/or antisocial purposes. The Lender shall have the right to recall the Loan if the funds are used for any speculative, unlawful and/or antisocial purposes and /or for any other reasons deemed inappropriate by the Lender.

5. General Terms

5.1 The Lender reserves the right to levy such fees and/or charges, from time to time, as specified in the Loan Documents. The fees and charges levied by the Lender in pursuance to the Loan Documents shall be non-refundable and non- transferable. The Lender may during the Loan Tenure and at its sole discretion, with or without any prior notice to the Borrower, amend / revise any of the terms and conditions contained in the Agreement including the repayment schedule, Interest Rate and/or any other fee or charge such as Penal Interest, processing fees, annual maintenance charges, Bounce Charges, Outstation Collection Charges, Pre-payment Charges, Flexi Assigned Limit fee, Flexi Fee, service charges, Touch Free Fee or such other charges/fees specified under Second Part and the Borrower acknowledges and agrees to be bound by such revised terms and conditions including repayment schedule, Interest Rate and/or such fee or charges mentioned above. The Lender shall give notice to the Borrower of any such amendment/revision/addition and shall ensure that changes in Interest Rate and other fee or charges are effected only prospectively. The Lender shall notify the Borrower of such changes by updating the same on the Website or through other modes of communication. The Borrower hereby agrees to keep himself/herself abreast with all notifications on the Website "https://www.bajajfinserv.in/all-fees-and-charges-new#pl" in this regard and shall be bound by the aforesaid change and agrees not to dispute the same.

5.2 Any statement of account furnished by the Lender regarding the Outstanding Dues payable by the Borrower under this Agreement shall be accepted by and be binding on the Borrower and shall be a conclusive proof of the correctness of the amount mentioned therein. Without prejudice to what is stated above, if the Borrower desire to question any statement or any part thereof, the Borrower shall furnish to the Lender full details of the same within 10 (ten) Business Days from the receipt of the statement by the Borrower and the Lender may consider the same and the Borrower shall not be entitled to object to the same thereafter on any ground whatsoever. It is however clarified that the Borrower shall not be entitled to default or delay the payment of Monthly Instalments on the ground of the statement of account furnished by the Lender being inaccurate or any other ground whatsoever.

5.3 Wherever the Borrower has given demand promissory note(s) to the Lender for the amount of the Loan, in case of a default, the Borrower will still be liable to repay to the Lender the Loan amount along with the interest at the Interest Rate hereto from the date of default till actual payment.

5.4 The Borrower confirms that if a demand promissory note is issued by him/her, the same shall operate as continuing security to the Lender to be enforceable for the repayment of the Outstanding Dues and/or all sums remaining unpaid under the Loan now or hereafter, including all interest to become payable in respect of/under the Loan or which may in future be advanced and that the Borrower will remain liable under/in respect of the demand promissory note notwithstanding payment made into the account of the Loan from time to time or the Loan being reduced or extinguished from time to time or even if the balance in the account of the Loan may be in credit. In case of death of the Borrower, the demand promissory note(s) given by the Borrower will be invoked against his/ her legal heir/s, legal representative/s, executor/s, administrator/s and permitted assign/s.

5.5 The Borrower shall pay any and all stamp duty, stamp duty penalties, registration fees and similar taxes and duties which are or may become payable in connection with the entry into, performance or enforcement of this Agreement and/or Loan Documents whether at the time of execution or thereafter. The Borrower hereby agrees that in case the Lender is required to make any payments such as stamp duty, stamp duty penalty, registration charges and/or any other charges and/or duties on and in relation to this Agreement and/ or Loan Documents or any other underlying/ associated documents, whether at the time of the execution or thereafter then the Lender shall be entitled/authorised to recover the same from the Borrower.

5.6 The Borrower shall provide to the Lender the correct Goods and Service Tax ('GST') registration number ('GSTIN') of the Borrower and the Lender shall not be responsible for verification of the same. In the event, the Borrower fails to furnish the GSTIN to the Lender, the Borrower shall be treated as unregistered for the purpose of GST.

5.7 The Lender shall raise an invoice on the Borrower in respect to the fees, charges and/or penal interest levied as per the Loan Documents. In the event the Lender issues a credit note towards adjustment of any discrepancy in the value of invoice raised by the Lender and if Borrower has failed to adjust the excessive input tax credit claimed by the Borrower on account of such discrepancy, the Borrower shall pay to the Lender the differential input tax credit, within a period of 30 (thirty) days from the date such issue is raised by the Lender. In the event the said amount is not paid by the Borrower to the Lender, the same shall be a debt due from the Borrower and shall be payable forthwith to the Lender together with any interest thereon. The Lender shall not be liable for any loss of credit arising on account of incomplete, erroneous or wrong details mentioned in the invoice.

5.8 Any provision of this Agreement which is prohibited or unenforceable including without limitation due to any notification, guidelines, circular issued by RBI from time to time, in any jurisdiction shall, as to such jurisdiction, be ineffective only to the extent of such prohibition or un-enforceability but that shall not invalidate or affect the remaining provisions of this Agreement nor affect such provision in any other jurisdiction.

5.9 The liabilities of the Borrower and the Co-Borrowers, if any, under this Agreement shall be joint and several.

5.10 Any delay in exercising or omission to exercise any right, power or remedy accruing to the Lender under this Agreement or any other agreement or document shall not impair any such right, power or remedy and shall not be construed to be waiver thereof or any acquiescence in any default, nor shall the action or inaction of the Lender in respect of any default or any acquiescence by it in any default affect or impair any right, power or remedy of the Lender in respect of any other default.

5.11 Any notices to be provided to the Borrower, would be delivered personally or by registered post or email or through any other electronic form to the addresses as mentioned in **First Part** or to such other address as may be notified for the purpose by the Borrower from time to time. Such notices shall be deemed to have been delivered: (i) 3 (three) days following dispatch by registered post; (ii) at the time so delivered, if delivered personally; (iii) at the time when such electronic message enters into such Borrower's computer or any other electronic device, as the case may be, if delivered by e-mail or through any other electronic form.

5.12 Without prejudice to all other rights as the Lender or any of the third parties appointed by the Lender may have under this Agreement and under law, on the occurrence of an Event of Default, the Lender, its authorised representatives, agents, and third parties as appointed by the Lender are authorised to use the contact details provided by the Borrower to get in touch with the Borrower (including the authorised signatory(ies)/representative(s), guarantor(s) (if any) and third parties including the family members of the Borrower) whose information the Borrower has provided to the Lender. Also, the Borrower may be sent reminders from time to time for settlement of any Outstanding Dues by post, fax, telephone, email, SMS text messaging via mobile phone.

5.13 Upon the occurrence and continuation of an Event of Default, the Lender is authorised at any time, without presentment, demand, protest or other notice of any kind to the Borrower, any such notice being expressly waived, to set off and to appropriate and apply any and all monies lying or deposited or held by the Lender. The Borrower agrees, declares and confirms that, notwithstanding any of the provisions

of the Indian Contract Act, 1872 or Applicable Law, or any terms and conditions to the contrary contained in this Agreement, the Lender may, at its absolute discretion, appropriate any payments made by the Borrower under this Agreement or any amounts realised by the Lender by enforcement of security or otherwise, towards the dues payable by the Borrower to the Lender under this Agreement and/or other agreements entered into between the Borrower and the Lender and in any manner whatsoever.

5.14 The Borrower agrees and confirms that the Lender shall not be obliged to grant and/or continue the credit facility, if it is apprehended that the terms mentioned in the sanction letter (if any) and this Agreement are not or may not be met to the satisfaction of the Lender. The Borrower further agrees that, the Lender may, absolutely and unconditionally, reduce, revoke, cancel and/or modify any undrawn amount (in whole or part), if any, from the sanctioned loan amount, at its discretion, at any time, without giving any prior notice to the Borrower or without assigning any reasons thereof.

5.15 Notwithstanding anything contained in this Agreement, the gross loan amount/approved loan amount/sanctioned loan amount mentioned in this Agreement is not final/conclusive and may be revised by BFL at its sole discretion. Further such amount remains contingent upon BFL's internal credit check and policies and the final approved amount will be communicated to the Borrower(s), through Electronic Media by BFL, in which case such revised amount shall remain final and binding on the Borrower(s).

5.16 This Agreement and the annexures/schedules attached hereto embodies the entire understanding between the Borrower and BFL, with respect to the subject matter of this Agreement and shall supersede any/all previous communications, representations or understandings, either oral or written, between the Borrower and BFL, relating to the subject matter hereof.

6. Assignment of Rights

The Lender shall at any time, without any consent of or notice to the Borrower be entitled to securitise, sell, assign, discount or transfer all or any part of the Lender's right and obligations under this Agreement or other Loan Documents, to any person(s) and in such manner and on such terms as the Lender may decide. The Borrower shall not be entitled to directly or indirectly assign or in any manner transfer, whether in whole or part, any rights or obligation under this Agreement and other Loan Documents.

7. Disclosure

7.1 The Borrower agrees and understands that as a pre-condition relating to the grant of the Loan to the Borrower, the Lender requires the Borrower's consent for the disclosure by the Lender of information and data relating to the Borrower, of the Loan availed of/ to be availed by the Borrower, obligations assured/ to be assured by the Borrower in relation thereto, default, if any, committed by the Borrower in discharge thereof and any other information made available by the Borrower to the Lender.

7.2 Accordingly, the Borrower agrees and gives consent for the disclosure by the Lender, if required under the Applicable Law, of all or any such:

(a) information and data relating to the Borrower;

(b) the information or data relating to Loan availed of/to be availed by the Borrower; and

(c) default, if any, committed by the Borrower in discharge of such obligation as the Lender may deem appropriate and necessary to disclose and furnish to RBI and any other regulator, Credit Information Companies ("CIC's") , Central KYC Registry, (CERSAI) including but not limited to TransUnion CIBIL Limited and/ or any other agency authorised in this behalf by RBI and/ or under applicable law and/ or to Information utilities ('IU') or any other person pursuant to the Insolvency and Bankruptcy Code 2016; and/ or to any other statutory or regulatory or law enforcement authority (including courts and/ or Tribunals).

7.3 The Borrower further declares that the information and data furnished by the Borrower to the Lender is true and correct.

7.4 In the event of the Borrower committing a default in the repayment of Outstanding Dues on the Due Dates, the Lender shall have an unqualified right to disclose the name of the Borrower to RBI,CIBIL,CIC,IU and any other agency authorised in this behalf by RBI and /or under Applicable Law. The Borrower gives its consent to the Lender and/or RBI and/ or CIBIL and/or CIC and/or IU, any other

agency authorized under Applicable Law, to publish their name as defaulters in such manner and through such medium as the Lender/RBI/CIBIL/CIC/IU and/or any other agency authorized under Applicable Law in their absolute discretion, may think fit.

7.5 The aforesaid right shall be available to the Lender in addition to and not in derogation of any other rights available under the Agreement.

7.6 Borrower further agrees and understands that:

(a) Credit Information Companies (CIC) and any other agency so authorized may use and/or process the said information and data disclosed by the Lender in the manner as deemed fit by them; and

(b) Credit Information Companies (CIC) and any other agency so authorised may furnish for consideration the processed information and data or products thereof prepared by them, to the Lender/financial institutions and other credit grantors or registered users, as may be specified by RBI in this behalf.

7.7 The Borrower agrees and understands that the Lender may also disclose any information/documents relating to the Borrower to any third party including Lender's Affiliates for promotional purposes or any other purpose as Lender may deem fit.

7.8 The Borrower, hereby agrees that in case the IU seeks any consent with respect to disclosure of the appropriate details, such consent shall be provided not later than 7 days from the date on which the same is sought. In case such consent is not forthcoming, the IU shall be in every right to treat such a consent being accorded by the Borrower to disseminate such information as appropriate disclosures. The Borrower expressly agrees and undertakes that it waives its right to take any defence on the ground of consent not being accorded in any proceedings. The Borrower hereby agrees and undertakes to indemnify and hold harmless the Lender, the IU, its officers, Directors, employees, on account of any losses, damages that may be incurred on account of any such action on its part

7.9 The Borrower further understands and agrees that the Lender may verify, any information or documents provided to the Lender with respect to the Loan, including, but without limitation, verifications with employers, financial institutions, other banks, at the time of the making the application for the Loan or at such intervals as may be decided by the Lender.

8. Indemnity

8.1 The Borrower shall indemnify the Lender (and its Affiliates) at all times hereafter from and against any and all claims, damages, costs, losses, expenses, suits, proceedings, actions, liabilities, etc., that may have been suffered by the Lender and/or its Affiliates by reason of any act by the Borrower or default on the part of the Borrower under this Agreement/in respect of the Loan and/or for the recovery of the Outstanding Dues (including legal/attorney fee).

8.2 The Borrower further agrees to indemnify and keep indemnified the Lender and/or its Affiliates from time to time and at all times hereafter and against any and all claims, duties, damages, costs, losses expenses, suits, proceedings, actions, liabilities etc., for/under which the Lender and/or its Affiliates may be liable:

(i) on account of destruction of cheque of the Borrower in accordance with Clause 2.23; and

(ii) at any point of time whether at the time of execution of this Agreement or any time thereafter.

8.3 The Borrower further agrees to indemnify and keep indemnified the Lender and/or its Affiliates from time to time and at all times hereafter from and against any and all claims, damages, costs, losses, expenses, suits, proceedings, actions, liabilities, etc., whatsoever arising in connection with or relating to any Communications (as defined below) provided/ received by the Lender and/or its Affiliates by Electronic Media (as defined below).

9. Electronic Media

9.1 The Borrower hereby confirms, acknowledges and agrees that the online acceptance of this Agreement including any addendums hereto through the Website or such other internet or web based means results in a binding contract between the Parties.

i. any physical means with or without the Borrowers knowledge (disclosure to any person/third party, etc) or

9.2 The Borrower is aware that transmission of this Agreement, addendums to this Agreement, terms and conditions, instructions, acceptances and communications ('Communications') through electronic means such as email, facsimile, SMS text messaging, websites, online acceptance, etc. ('Electronic Media') involves a number of risks including fraudulent alterations and incorrect transmissions and absence of confidentiality , further confirm that all risks arising therefrom shall be fully borne by the Borrower, whether or not it has resulted due to any non-communication, miscommunication, or technological error beyond the control of the Lender. However, the Borrower is desirous of receiving Communications from and providing Communications to the Lender through the Electronic Media for various matters under this Agreement including in relation to the Loan and the operation thereof. Further, the Borrower shall duly inform the Lender about any change in the email id/address and indemnify the Lender against any non-communication, miscommunication, error, loss and damage and otherwise caused to the Lender.

9.3 The Borrower shall be solely liable for disclosure of any personal/sensitive personal information without exercising proper due diligence at the Borrower's end.

9.4 The Borrower shall undertake to only use the official website/links of BFL/its associates/group companies/assigns for availing products/services by inputting the domain information.

9.5 The Borrower acknowledges the potential risk of data/privacy breach and the Borrower undertakes that they shall be solely liable for any unauthorized disclosure/breach of data, etc and any direct/indirect losses suffered by any party due to the same. Hence, the Borrower shall exercise utmost caution to ensure that their personal data/sensitive personal data (including but not limited to any passwords, financial information, account details, etc) are NOT shared/stored/made accessible through:

ii. through any electronic means, by exercising the following precautions/safety measures:

a. The Borrower shall always check if "https" appears in any website's address bar before making any online transaction, to ensure that the webpage is encrypted;
b. The Borrower shall avoid using third party extensions, plug-ins or add-ons on their web browser, as it may result in the risk of tracking or stealing of personal details;
c. The Borrower shall always type the information and not use the auto-fill option on web browser to prevent the risk of storage of any personal/sensitive personal information;
d. The Borrower shall NOT access darknet, unauthorized/suspicious websites, suspicious online platforms or download applications from unreliable sources.
e. The Borrower shall ensure to disable cookies before accessing any domain/website, to ensure that their personal information is not tracked by any third party, unless otherwise consciously permitted by the Borrower by accepting the same;
f. The Borrower shall NOT respond to any generic emails from an unknown/unidentified source;
g. The Borrower shall check the privacy policy of any website/application to know the type of information that may be collected and the manner in which it may be processed before accepting/proceeding/transacting on said website/application;
h. The Borrower shall always verify and install authentic web/mobile applications from reliable source on your computer/laptop/tab/i-pad/smart phone or any other electronic device;
i. The Borrower shall NOT access any unidentified weblinks, bitly or any other electronic links shared over electronic platform (such as email, SMS, social media, websites);

9.6 In consideration of the Lender permitting the same, the Borrower hereby irrevocably, confirms and undertakes to the Lender as under:

(a) The Lender shall be entitled (without being bound to do so) to rely upon the Communications provided through the Electronic Media (and believe the same to be genuine), for their requirements. In case of any question as to what were the Communications provided or received, the records of the Electronic Media received by the Lender shall be treated as final, conclusive and binding.

(b) The Borrower has ensured and shall ensure that the Communications provided through the Electronic Media to the Lender are provided by the Borrower and hereby agrees and confirms that the Lender shall not be responsible for conducting any verification whatsoever in this regard.

(c) The Borrower confirms that the Lender shall not be bound to act in accordance with whole or any part of the communications as it may appear in the Communications so conveyed and the same shall be at the sole risk of the Borrower.

(d) The Lender shall not be liable for the consequences of any act or any refusal or omission to act or deferment of action by the Lender on basis of the Communications through the Electronic Media.

(e) The Lender shall not be required to await receipt of the Communications in writing before taking any action in connection with the Communications provided through any Electronic Media and the non-delivery and non- conformity of such Communications in writing shall not in any manner prejudice the Lender's rights under this Agreement or otherwise.

(f) The Lender may at any time whatsoever without assigning any reason withdraw or modify or add the facility/ies provided to the Borrower in relation to the Communications through Electronic Media.

(g) The Borrower is aware and confirms that the Lender is agreeing to act on any Communications provided through Electronic Media only by reason of, and relying upon the undertaking and indemnities contained in this Clause.

10. Dispute Resolution

Any claims and disputes arising out of or in connection with this Agreement or its performance thereof shall be referred to a sole arbitrator for adjudication, who shall be appointed in the following manner:
The lender shall address a notice to the Borrower suggesting the names of not more than three arbitrators, from whom, the borrower shall, either:
(i) Confirm acceptance one among the proposed names as the sole arbitrator and confirm in writing to the Lender within a period of ten (10) days from the date of notice ("Notice Period"); or
(ii) convey objection if any in writing to the Lender, against the proposed names of the sole arbitrator within the said Notice Period.
However, if the Lender does not receive any response from the Borrower within the said Notice Period, the Lender shall construe the same to be deemed consent/acceptance by the Borrower for the appointment of the sole arbitrator as may be decided by the Lender.
The venue of arbitration shall be either at Pune or the State capital, at the sole discretion of the Lender. The arbitration shall be conducted under the provisions of the Arbitration and Conciliation Act, 1996 together with its amendments, any statutory modification or re-enactment thereof for the time being in force. The arbitration proceeding shall be conducted in English language. The award of such arbitrator shall be final and binding upon the Parties hereto.

11. Governing Law

The validity, interpretation, implementation and resolution of disputes arising out of or in connection with this Agreement shall be governed by Indian law. The Parties agree that all matters arising out of this Agreement shall be subject to the exclusive jurisdiction of the courts or tribunals (as the case may be) at Pune, India.

☑ I here by agree that I have read the loan agreement in detail along with the Terms & Condition, Fees , Charges & Deductions . And I understand the details mentioned in the same

☑ I have made a request to BFL to grant the loan and BFL has considered my loan application favourably basis my creditworthiness. Accordingly, I declare that, I have stable income and financial stability to discharge my loan liability from time to time and hence, I shall not make any application to BFL requesting for moratorium. In the event I make such an application, BFL has to right to reject the same without any further reference to me and I shall never question and/or contest the same before the Regulators and/or court.